

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

MARLENE GATHERS,

Plaintiffs,

-against-

THE CITY OF NEW YORK; NYPD P.O. DANIEL
MIVZESKY; NYPD P.O. JOHN/JANE DOES # 1-
10; the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

----- X

SUMMONS:

Index No: _____

Date Filed: _____

Basis of Venue: Occurrence of
incident: 361 Wortman Avenue
Apartment 1F, Brooklyn, New
York

Jury Trial Demanded

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiffs' attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
OCTOBER 27, 2017



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiffs
65 Broadway 715
New York, NY 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD P.O. DANIEL MIVZESKY
NYPD P.O. JOHN/JANE DOES #1-10
75th Precinct
1000 Sutter Ave,
Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARLENE GATHERS,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. DANIEL
MIVZESKY; NYPD P.O. JOHN/JANE DOES # 1-
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Plaintiff MARLENE GATHERS, by and through her counsel
Adams & Commissiong LLP, upon information and belief, alleges as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiffs seek relief for the violation of
their rights secured by the laws of the State of New York; New
York State Constitution; 42 U.S.C. §§ 1983 and 1988; and the
Fourth, Fifth, and Fourteenth Amendments to the United States
Constitution. Plaintiffs' claims arise from an incident that
arose on or about October 28, 2016. During the incident, the
City of New York, and members of the New York City Police
Department ("NYPD") subjected plaintiffs to, among other things,
unlawful search and seizure; false arrest; unreasonable force;

VERIFIED COMPLAINT

Index No: _____

Date Filed: _____

Basis of Venue: Occurrence
of incident: 361 Wortman
Avenue Apartment 1F,
Brooklyn, New York

failure to intervene; assault and battery; negligence; negligence supervision and training of unfit employees; failure to intervene; and implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

2. Within 90 days of the incidents alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, New York County.

PARTIES

6. Plaintiff Marlene Gathers is a resident of the State of New York, Kings County.

7. The plaintiff is African American and at the time of the incident was a 65 year old retiree.

8. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

9. At all times alleged herein, defendant NYPD P.O. Daniel Mizvesky; and P.O. JOHN/JANE DOES # 1-10 were New York City Police Officers employed with the 75th Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

11. On or about October 28, 2016, at approximately 7:30pm at and in the vicinity of 361 Wortman Avenue Apartment

1F, Brooklyn, New York, several police officers operating from the 75th precinct, including upon information and belief, defendants NYPD P.O. Daniel Mizvesky and John/Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

12. On October 28, 2016, at approximately 7:30 p.m., at and in the vicinity of 361 Wortman Avenue Apartment 1F, Brooklyn, New York, several police officers operating from the 75th precinct, including upon information and belief, defendants NYPD P.O. Daniel Mizvesky and John/Jane Does # 1-10, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime unlawfully entered 361 Wortman Avenue Apartment 1F, Brooklyn, New York.

13. The defendants, including defendants NYPD P.O. Daniel Mizvesky and John/Jane Does # 1-10 broke into 361 Wortman Avenue Apartment 1F, Brooklyn, New York.

14. If the defendant officers had a search warrant, it was issued upon the basis of extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

15. If the defendant officers had a search warrant, they obtained it by failing to properly supervise and verify the

reliability of an informant against NYPD policy and procedures to ensure the reliability of the confidential informant and the confidential informant's information before obtaining the warrant.

16. If the defendant officers had a search warrant, they were negligent in the execution of that warrant as the defendant officers negligently and incompetently went into the wrong apartment.

17. If the defendant officers had a search warrant, they were negligent and incompetent in obtaining the warrant, by negligently and incompetently providing the issuing magistrate the wrong address.

18. Plaintiff was undressed, when the defendant officers broke down her door and forcibly entered her apartment with their guns drawn.

19. Plaintiff was completely naked.

20. Once defendants 361 Wortman Avenue Apartment 1F, Brooklyn, New York plaintiff was not free to disregard the defendants' questions, walk away or leave the scene.

21. One of the defendant officers, told plaintiff to put her hands behind her back, and plaintiff' complied.

22. One of the defendant officers then grabbed plaintiff's wrist and placed excessively tight handcuffs on her.

23. After they handcuffed plaintiff, the officers told the plaintiff to sit down, and she complied.

24. The defendant officers then searched the house.

25. One of the defendant officers asked plaintiff if she had any drugs or guns in the house or a dog or a cat.

26. Plaintiff said that she did not have any of those things in her house. She also told the officers that no one in her family does drugs or smokes.

27. One of the defendant officers asked plaintiff who lived in the house and plaintiff replied that only she and her husband live in the house.

28. One of the defendant officers told plaintiff, that she did not belong there and that she was not on the lease.

29. Plaintiff has lived at that address since 1983.

30. Plaintiff told the defendant officers that they had the wrong apartment.

31. The defendant officers than told plaintiff that if we find any drugs or guns here, "you know what happens next". Plaintiff again told the defendant officers that they would not find anything.

32. Plaintiff asked the officers to remove the handcuffs, but the officers denied her request.

33. While searching the apartment, the police officers, unreasonably, maliciously, and unnecessarily damaged plaintiffs' personal property, and made a mess of her apartment.

34. One of the defendant officers told plaintiff that they had a warrant and that one of her sons has been selling drugs out of the apartment.

35. Plaintiff replied that both of her sons are married with children and do not live here and never had any problems.

36. The defendant police officers then brought a dog into plaintiff's apartment. `

37. The dog searched the apartment and found no evidence of weapons, contraband, narcotics, or illegal activity.

38. The defendant officers then left, and told plaintiff that someone will come to fix her door.

39. Plaintiff was confined to her home for approximately 6 days, because her door did not lock.

40. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

41. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

42. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

43. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his/her rights.

44. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

45. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

48. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(FALSE ARREST UNDER STATE LAW)**

49. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

51. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

THIRD CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendants unlawfully searched plaintiff's residence without cause, a warrant, or consent.

54. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)**

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants unlawfully stopped and searched plaintiff's residence without cause, a warrant, or consent.

57. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

FIFTH CLAIM**(UNREASONABLE FORCE)**

58. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

59. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

60. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

61. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

62. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

63. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

64. Among other things as described above, defendants' search and seizure, battery, false arrest, and excessive use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

65. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SEVENTH CLAIM**(BATTERY)**

66. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

67. Among other things as described above, defendants' search and seizure, false arrest, and excessive use of force against plaintiff were illegal physical contacts.

68. Accordingly, defendants are liable to plaintiff under New York State law for battery.

EIGHTH CLAIM**(FAILURE TO INTERVENE)**

69. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

70. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

71. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

NINTH CLAIM**(NEGLIGENCE)**

72. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

73. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

TENTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING, TRAINING, AND
RETENTION OF UNFIT EMPLOYEES)**

74. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

75. Defendant City of New York is liable to plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its Police Officers.

ELEVENTH CLAIM

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

76. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

77. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees,

negligently and/or intentionally inflicted emotional harm upon plaintiff.

78. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

79. The defendants breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for his/her own safety.

TWELTH CLAIM

(RESPONDEAT SUPERIOR)

80. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

81. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff, including assaulting, and battering plaintiff, and negligently searching her home.

82. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands, damages in an amount which exceeds the jurisdiction of all lower Courts otherwise having jurisdiction, a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
October 27, 2017

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiffs
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New York, New York 10006
212-430-6590
martin@amcmlaw.com

By:


MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARLENE GATHERS,

VERIFICATION

Plaintiff,

Index No: _____

-against-

Date Filed: _____

THE CITY OF NEW YORK; NYPD P.O. DANIEL
MIVZESKY; NYPD P.O. JOHN/JANE DOES # 1-10;
the individual defendant(s) sued individually
and in their official capacities,

Defendants.

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STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to
practice law in the State of New York, hereby affirms pursuant to the
C.P.L.R. and subscribing as true under the penalties of perjury as
follows:

That the Affirmant is a member of the law firm Adams &
Commissiong LLP, the attorneys of record for the plaintiff in the
above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to
the matters stated to be alleged upon information and belief, and that
as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant
instead of the plaintiff is because the plaintiff does not reside
within the County in which the firm of Adams & Commissiong LLP
maintain their office.

The grounds of Affirmant's belief as to all matters in the
complaint not stated to be upon his knowledge are based upon
conversations with plaintiff, and a review of records related to this
action.

DATED: New York, New York
October 27, 2017



MARTIN E. ADAMS, ESQ